



Bill Number: S.B. 1754

Finchem Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes the requirement for the Director of the Division of Special Education (Division) to designate an individual to provide assistance to the parents of children who file a complaint alleging that a public school has violated requirements of federal or state laws relating to the provision of special education.
2. Allows the Division to provide assistance to an individual who files a complaint alleging that a public school has violated requirements of federal or state laws relating to the provision of special education.
3. Removes, from the list of laws of which an organization or individual may file a complaint alleging a violation, as outlined, the restraint and seclusion techniques prescribed by statute.
4. Specifies that the Division, rather than the designated individual, must contact the complainant of each complaint found to be incomplete or designated as *does-not-qualify* to request any necessary signatures in addition to other missing information.
5. Removes the requirements for the Division to create and maintain a central repository of the reports and submit an annual report to outlined individuals that includes prescribed information on the number of complaints filed for the immediately preceding school year.
6. Requires the Arizona Department of Education (ADE), within 60 days after completing a complaint investigation, to post all complaint investigative reports for the complaint on ADE's website, including any corrective action or dismissal letters as outlined.
7. Directs ADE to redact all complaint investigative reports to remove personally identifiable information and as required by student privacy laws.
8. Determines that complaint investigative reports that are posted as prescribed are not student level data for the purposes of the Student Accountability Information System.
9. Requires ADE to adopt policies and procedures as outlined for complaints filed with the Division and post the policies and procedures on ADE's website.
10. Specifies that a report is designated as *does-not-qualify* if ADE determines that:
 - a) the student is not a child with a disability;
 - b) none of the allegations in the complaint are in violation of the outlined federal and state laws;
 - or
 - c) the nature of the allegations are outside ADE's investigate authority.
11. Makes technical changes.

Amendment explanation prepared by Mason Holler

3/3/2026

FINCHEM FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1754
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-235, Arizona Revised Statutes, is amended to
3 read:

4 15-235. Division of special education; director; duties;
5 qualifications; advisory committee; members

6 A. ~~THE~~ division of special education is established to carry out
7 this section, ~~section~~ SECTIONS 15-235.01 AND 15-236 and chapter 7, article
8 4 of this title subject to the superintendent of public instruction.

9 B. There shall be at least one director of the division of special
10 education.

11 C. The director or directors shall carry out this section, ~~section~~
12 SECTIONS 15-235.01 AND 15-236 and chapter 7, article 4 of this title and
13 the duties prescribed by the state board of education relating to the
14 administration of this section, ~~section~~ SECTIONS 15-235.01 AND 15-236 and
15 chapter 7, article 4 of this title.

16 D. The division of special education may review special education
17 programs, including placement of pupils, to determine that program,
18 evaluation and placement procedures comply with sections 15-766 and 15-767
19 and the rules approved by the state board of education.

20 E. Only a person who is experienced in special education is
21 eligible for appointment as a director of the division of special
22 education.

23 F. A special education advisory committee is established that shall
24 advise and consult with the state board of education, the superintendent
25 of public instruction and the director or directors of the division of
26 special education and that shall engage in other activities as are
27 provided in this section. The advisory committee shall be composed
28 pursuant to the requirements of 20 United States Code section
29 ~~1412(A)(21)(b) and (c)~~ 1412(a)(21)(B) AND (c). The state board of

1 education shall appoint the members of the advisory committee for
2 staggered ~~three year~~ THREE-YEAR terms. Vacancies shall be filled for the
3 unexpired term in the same manner as original appointments.

4 G. The advisory committee shall have a minimum of two meetings a
5 year.

6 H. The advisory committee annually shall elect its own chairman and
7 vice-chairman. The state board of education shall regularly submit, as
8 part of its budget request, any item or items sufficient to cover expenses
9 of the operation of the advisory committee, and of its members in
10 connection with their attendance at meetings of the advisory committee and
11 other advisory committee activities.

12 Sec. 2. Title 15, chapter 2, article 2, Arizona Revised Statutes,
13 is amended by adding section 15-235.01, to read:

14 15-235.01. Division of special education; state complaints;
15 posting requirements; limitation on redactions;
16 student level data exemption; policies and
17 procedures

18 A. ~~[A DIRECTOR OF]~~ THE DIVISION OF SPECIAL EDUCATION ESTABLISHED BY
19 SECTION 15-235 ~~[SHALL DESIGNATE AT LEAST ONE INDIVIDUAL TO]~~ [MAY] PROVIDE
20 ASSISTANCE TO ~~[THE PARENTS OF CHILDREN]~~ [INDIVIDUALS] WHO FILE OR SEEK TO
21 FILE A COMPLAINT ALLEGING THAT A SCHOOL DISTRICT OR CHARTER SCHOOL HAS
22 VIOLATED THE PROCEDURAL OR SUBSTANTIVE REQUIREMENTS OF ~~[ANY]~~ [ONE OR MORE]
23 OF THE FOLLOWING:

24 1. 20 UNITED STATES CODE SECTIONS 1411 THROUGH 1419 OR THE
25 REGULATIONS IMPLEMENTING THOSE SECTIONS.

26 2. THE LAWS OF THIS STATE RELATING TO THE PROVISION OF SPECIAL
27 EDUCATION.

28 ~~[3. SECTION 15-105.~~

29 ~~B. THE INDIVIDUAL DESIGNATED PURSUANT TO SUBSECTION A OF THIS~~
30 ~~SECTION SHALL DO THE FOLLOWING:~~

31 ~~1. PROVIDE SUPPORT TO ANY PERSON WHO FILES OR CONTACTS THE~~
32 ~~DEPARTMENT FOR THE PURPOSE OF FILING A COMPLAINT ALLEGING THAT A SCHOOL~~
33 ~~DISTRICT OR CHARTER SCHOOL HAS COMMITTED ONE OR MORE VIOLATIONS DESCRIBED~~
34 ~~IN SUBSECTION A OF THIS SECTION.]~~

35 ~~[2.]~~ [B.] FOR ANY COMPLAINT ALLEGING A VIOLATION DESCRIBED IN
36 SUBSECTION A OF THIS SECTION THAT IS FILED WITH THE DEPARTMENT AND THAT IS
37 FOUND TO BE INCOMPLETE OR DESIGNATED AS "DOES-NOT-QUALIFY", [THE DIVISION
38 SHALL] CONTACT THE ~~[PERSON WHO FILED THE COMPLAINT]~~ [COMPLAINANT] AND
39 REQUEST ~~[ADDITIONAL]~~ [MISSING] INFORMATION [OR NECESSARY SIGNATURES].

40 ~~[C. THE DIVISION SHALL CREATE AND MAINTAIN A CENTRAL REPOSITORY OF~~
41 ~~ALL APPROPRIATELY REDACTED REPORTS.~~

42 ~~D. TO THE EXTENT ALLOWED UNDER FEDERAL LAW, ON OR BEFORE _____ OF~~
43 ~~EACH YEAR, THE DIVISION SHALL SUBMIT A REPORT TO THE GOVERNOR, THE SPEAKER~~
44 ~~OF THE HOUSE OF REPRESENTATIVES, THE PRESIDENT OF THE SENATE AND THE~~
45 ~~CHAIRPERSONS OF THE SENATE AND HOUSE OF REPRESENTATIVES COMMITTEES ON~~
46 ~~EDUCATION, OR THEIR SUCCESSOR COMMITTEES, AND SHALL SUBMIT A COPY OF THE~~
47 ~~REPORT TO THE SECRETARY OF STATE, THAT INCLUDES THE FOLLOWING INFORMATION~~

1 ~~FOR THE IMMEDIATELY PRECEDING SCHOOL YEAR, DISAGGREGATED BY SCHOOL~~
2 ~~DISTRICT OR CHARTER SCHOOL, COUNTY, RACE AND DISABILITY CATEGORY:~~
3 ~~1. THE NUMBER OF COMPLAINTS FILED WITH THE DEPARTMENT.~~
4 ~~2. THE NUMBER OF COMPLAINTS FOR EACH OF THE FOLLOWING:~~
5 ~~(a) EVALUATION DENIALS.~~
6 ~~(b) ELIGIBILITY DISPUTES.~~
7 ~~(c) ALLEGED TIMELINE VIOLATIONS.~~
8 ~~(d) FAILURE TO PROVIDE AGREED-ON SERVICES.~~
9 ~~(e) ANY OTHER SUBJECT IDENTIFIED BY THE DIVISION.~~
10 ~~3. A DESCRIPTION OF THE STAFFING LEVELS AND TENURE FOR COMPLAINT~~
11 ~~INVESTIGATORS WHO ARE EMPLOYED BY THIS STATE.~~
12 ~~4. THE NUMBER OF COMPLAINTS:~~
13 ~~(a) THAT WERE DISMISSED ON THE GROUNDS THAT THE COMPLAINT WAS~~
14 ~~DESIGNATED AS "DOES-NOT-QUALIFY".~~
15 ~~(b) THAT WERE OPENED FOR INVESTIGATION.~~
16 ~~(c) THAT WERE WITHDRAWN BY THE FILER, DISAGGREGATED BY THE REASON~~
17 ~~FOR WITHDRAWAL, IF KNOWN.~~
18 ~~(d) THAT RESULT IN A FINDING OF NONCOMPLIANCE OR AT LEAST ONE~~
19 ~~VIOLATION DESCRIBED IN SUBSECTION A OF THIS SECTION.~~
20 ~~(e) THAT RESULT IN A CORRECTIVE ACTION.~~
21 ~~(f) FOR WHICH A CORRECTIVE ACTION EXCEEDS ONE CALENDAR YEAR.~~
22 ~~(g) THAT RESULT IN THE APPOINTMENT OF A SPECIAL MONITOR.~~
23 ~~(h) FOR WHICH CORRECTIVE ACTION WAS NOT TAKEN AND THE DEPARTMENT~~
24 ~~ISSUES:~~
25 ~~(i) A LETTER OF INQUIRY.~~
26 ~~(ii) A LETTER OF CLARIFICATION.~~
27 ~~(iii) ISSUES A LETTER OF ENFORCEMENT.~~
28 ~~5. A DESCRIPTION OF:~~
29 ~~(a) THE BASIS FOR DESIGNATING EACH COMPLAINT DESCRIBED IN PARAGRAPH~~
30 ~~4, SUBDIVISION (a) OF THIS SUBSECTION AS "DOES-NOT-QUALIFY".~~
31 ~~(b) THE ENFORCEMENT ACTION THAT WAS IMPOSED FOR EACH COMPLAINT~~
32 ~~DESCRIBED IN PARAGRAPH 4, SUBDIVISION (h), ITEM (iii) OF THIS SECTION.]~~
33 [C. NOT LATER THAN SIXTY DAYS AFTER COMPLETING A STATE COMPLAINT
34 INVESTIGATION, THE DEPARTMENT SHALL POST ON THE DEPARTMENT'S WEBSITE ALL
35 STATE COMPLAINT INVESTIGATIVE REPORTS FOR THE STATE COMPLAINT, INCLUDING
36 ANY CORRECTIVE ACTION OR, IF THE COMPLAINT IS DESIGNATED AS
37 "DOES-NOT-QUALIFY", DISMISSAL LETTERS. NOTWITHSTANDING ANY OTHER LAW, THE
38 DEPARTMENT SHALL REDACT ALL STATE INVESTIGATIVE REPORTS THAT ARE POSTED
39 PURSUANT TO THIS SUBSECTION TO REMOVE PERSONALLY IDENTIFIABLE INFORMATION
40 AND AS REQUIRED BY ONLY STUDENT PRIVACY LAWS.
41 D. STATE COMPLAINT INVESTIGATIVE REPORTS THAT ARE POSTED PURSUANT
42 TO SUBSECTION C OF THIS SECTION ARE NOT STUDENT LEVEL DATA AS DEFINED BY
43 SECTION 15-1042.
44 E. THE DEPARTMENT SHALL ADOPT POLICIES AND PROCEDURES FOR STATE
45 COMPLAINTS DESCRIBED IN THIS SECTION AND SHALL POST THE POLICIES AND
46 PROCEDURES ON THE DEPARTMENT'S WEBSITE. THE POLICIES AND PROCEDURES

1 ADOPTED PURSUANT TO THIS SUBSECTION ARE SUBJECT TO THE FOLLOWING
2 REQUIREMENTS:

3 1. THE POLICIES AND PROCEDURES MUST INCLUDE POLICIES AND PROCEDURES
4 RELATING TO THE REDACTION OF STATE COMPLAINT INVESTIGATIVE REPORTS.

5 2. BEGINNING DECEMBER 1, 2026, THE DEPARTMENT SHALL PROVIDE AN
6 OPPORTUNITY FOR PUBLIC COMMENT FOR AT LEAST SIXTY DAYS BEFORE DRAFT
7 POLICIES AND PROCEDURES MAY BECOME EFFECTIVE.

8 3. THE DEPARTMENT SHALL DESIGN THE POLICIES AND PROCEDURES TO
9 PROTECT THE PERSONALLY IDENTIFIABLE INFORMATION OF STUDENTS AND TO PROMOTE
10 THE TRANSPARENCY OF THE STATE COMPLAINT PROCESS, INVESTIGATIVE REPORTS AND
11 STUDENT OUTCOMES.

12 F. FOR THE PURPOSES OF THIS SECTION, A REPORT IS DESIGNATED AS
13 "DOES-NOT-QUALIFY" IF THE DEPARTMENT DETERMINES ANY OF THE FOLLOWING:

14 1. THE STUDENT IS NOT A CHILD WITH A DISABILITY AS DEFINED IN
15 SECTION 15-761.

16 2. NONE OF THE ALLEGATIONS IN THE COMPLAINT ARE A VIOLATION THAT IS
17 DESCRIBED IN SUBSECTION A, PARAGRAPH 1 OR 2 OF THIS SECTION.

18 3. THE NATURE OF THE ALLEGATIONS IN THE COMPLAINT ARE OUTSIDE THE
19 DEPARTMENT'S INVESTIGATIVE AUTHORITY.]

20 Enroll and engross to conform

21 Amend title to conform

MARK FINCHEM

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